

		or part of another medical procedure at the demurrer stage. In <i>Kaplan v. Mamelak</i> (2008) 162 Cal.App.4th 647, the Court of Appeal noted that while “<i>Cobbs</i> offers several examples of medical battery based on a physician's performance of a substantially different procedure[,] [t]he examples do not seem to lend themselves to any overarching test for deciding at the margin whether a medical procedure is ‘substantially different’ from the authorized procedure, and <i>Cobbs</i>’s description of them offers little guidance.” (<i>Id.</i> at p. 646.) The <i>Kaplan v. Mamelak</i> Court ultimately held that: In the absence of any definitive case law establishing whether operating on the wrong disk within inches of the correct disk is a “substantially different procedure,” we conclude the matter is <i>a factual question for a finder of fact to decide and, at least in this instance, not one capable of being decided on demurrer.</i> (<i>Id.</i> at p. 647, italics added; see also <i>So v. Shin</i> (2013) 212 Cal.App.4th 652, 670 [“As in <i>Kaplan</i>, whether this alleged conduct was within the scope of plaintiff's consent ‘is a factual question for a finder of fact to decide and, at least in this instance, not one capable of being decided on demurrer.’”], quoting <i>Kaplan v. Mamelak</i> (2008) 162 Cal.App.4th at p. 647.) Whether skin excision was the same as or part of breast replacement, breast lift, and liposuction is a factual question which the court cannot decide at this stage, and the court must accept as true the allegations of the FAC that skin excision is a different procedure for which she did not consent. Therefore, the court will overrule the demurrer to the 3rd Cause of Action. Plaintiff shall give notice of this ruling.
2	Borchard vs. Baumer of America, Inc. 30-2026-01565999	<u>Application to Appear Pro Hac Vice</u> The Application of Moritz C. Schumann to Appear as Counsel Pro Hac Vice is CONTINUED to December 22, 2026 at 9:00 a.m. in Department N15.

		Defendant Baumer of America, Inc. is ORDERED to file amended application papers consistent with this ruling. Defendant Baumer of America, Inc. is ORDERED to serve the original and amended application papers upon all parties who have appeared in this action and the State Bar of California at its San Francisco office, and to file proof(s) of service showing such service, within 30 days of this ruling. <u>Pending Motion</u> Counsel Moritz C. Schumann of Schumann Burghart LLP in New York, New York applies to appear as counsel <i>pro hac vice</i> for Defendant Baumer of American, Inc. <u>Standards to Appear Pro Hac Vice</u> An attorney in good standing in another jurisdiction who has been retained to appear in a case pending this court may apply to appear as counsel <i>pro hac vice</i> in the State of California, so long as an active member of the State Bar of California is associated as attorney of record in the case. (Cal. Rules of Court, rule 9.40(a).) The attorney desiring admission <i>pro hac vice</i> must file a verified application and a proof of service showing service by mail of a copy of the notice of hearing and application on all parties who have appeared in the case. (Cal. Rules of Court, rule 9.40(c)(1).) The notice of hearing and application papers must also be served on the State Bar of California at its San Francisco office, along with payment of a \$500.00 fee. (<i>Id.</i>, rule 9.40(c)(1) & (e).) The notice of hearing must be given in the time prescribed by Civil Procedure Code section 1005. (<i>Id.</i>, rule 9.40(c)(1).) The application must state: 1. the applicant's residence and office addresses; 2. the courts to which the applicant has been admitted to practice and the dates of admission;
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		3. that the applicant is a member in good standing in those courts; 4. that the applicant is not currently suspended or disbarred in any court; 5. the title of each court and cause in which the applicant has filed an application to appear as counsel pro hac vice in this state in the preceding two years, the date of each application, and whether or not it was granted; and 6. the name, address, and telephone number of the active member of the State Bar of California who is attorney of record in the local action. (Cal. Rules of Court, rule 9.40(d).) The "application to be admitted 'pro hac vice' is addressed to the court's sound discretion." (<i>Big Lots Stores, Inc. v. Superior Court of San Diego County</i> (2020) 57 Cal.App.5th 773, 779.) Here, the court is unable to find a proof of service showing that the application papers have been served on all parties who have appeared in this action, including Plaintiff Thomas Boarchard. There is a possibility that Plaintiff has not received notice of this application as Plaintiff has not filed a response to the application. In addition, the court cannot find a proof of service establishing that the application papers have been served on the State Bar at its San Francisco address. Further, while Counsel states that he has paid the \$500 application fee, the application papers do not include the payment confirmation which was to be attached as Exhibit A. (See Decl. of Mortiz C. Schumann in Supp. of Application to Appear Pro Hac Vice (Schumann Decl.), ¶ 9.) Finally, the application papers do not include Counsel's residential address, as required by California Rules of Court rule 9.40(d). Therefore, the court will continue the hearing to allow Defendant to file amended application papers
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		and proofs of service showing service of the original and amended application papers upon all parties who have appeared in this action and the State Bar. Defendant shall give notice of this ruling.
3	Phan vs. Fountain Valley Regional Hospital and Medical Center 30-2025-01500005	<u>Motion to Furnish Security</u> Defendant Fountain Valley Regional Hospital and Medical Center's Motion for Order Requiring Vexatious Litigant Plaintiff, Tin Quoc Phan, to Furnish Security is GRANTED in part and DENIED in part. Defendant Fountain Valley Regional Hospital and Medical Center's Request for Judicial Notice of Court Records is GRANTED as to Exhibits 1-8. (See Evid. Code, § 452, subd. (d).) However, Defendant Fountain Valley Regional Hospital and Medical Center is encouraged to strictly comply with all provisions of the Civil Procedure Code and California Rules of Court in the future, including the provision that requires "[a]ny request for judicial notice must be made in a separate document." (Cal. Rules of Court, rule 3.1113(I).) Future violations may result in the court denying or disregarding non-compliant papers. Plaintiff Tin Quoc Phan is ORDERED to post an undertaking or bond, or furnish security, in the amount of \$15,110 within 60 days of receiving notice of this ruling. Plaintiff Tin Quoc Phan is ORDERED to file and serve a notice of undertaking, bond, or furnishing of security and attach evidence of the undertaking, bond, or furnishing of security within 60 days of receiving notice of this ruling. If Plaintiff Tin Quoc Phan fails to abide by the court's orders, Defendant Fountain Valley Regional Hospital and Medical Center may move <i>ex parte</i> for dismissal pursuant to Civil Procedure Code section 391.4. <u>Furnishing Security</u> Code of Civil Procedure section 391.1 states that: